

STATE OF NEW YORK

8635 --A

IN SENATE

January 7, 2026

Introduced by Sens. FERNANDEZ, CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law and the public health law, in relation to a special needs assisted living demonstration program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 461-l of the social services law
2 is amended by adding a new paragraph (o) to read as follows:

3 (o) Notwithstanding paragraph (n) of this subdivision, the commission-
4 er shall establish a special needs assisted living demonstration program
5 to authorize up to three assisted living programs throughout the state
6 to serve individuals with special needs, including, but not limited to,
7 individuals with dementia or cognitive impairments. Each participating
8 assisted living program shall submit information as determined by the
9 commissioner to analyze the feasibility, efficiency and the potential
10 for cost savings associated with providing care to the population under
11 the demonstration program. No later than two years after the effective
12 date of this paragraph, the commissioner shall submit a report to the
13 governor, the temporary president of the senate and the speaker of the
14 assembly analyzing the cost and efficiency of the special needs assisted
15 living demonstration program.

16 § 2. Subdivision 6 of section 3614 of the public health law is amended
17 by adding a new paragraph (d) to read as follows:

18 (d) The commissioner shall adjust medical assistance rates of payment
19 for services provided by assisted living programs participating in a
20 demonstration program pursuant to paragraph (o) of subdivision three of
21 section four hundred sixty-one-l of the social services law to serve
22 individuals with special needs, including, but not limited to, individ-
23 uals with dementia or cognitive impairments. Such rates shall be suffi-
24 cient to cover the provision of specialized services, staffing levels,
25 staff education and training, work experience, professional affiliations
26 or special characteristics relevant to serving persons with special
27 needs, and any environmental modifications that have been made or will
28 be made to protect the health, safety and welfare of such persons.

29 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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